



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, Planner
Subject: UDC-21-00209 – Waterford Square, 3rd Filing Final Plat
Date: July 12, 2021

Background:

The item for consideration is a *Final Plat*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 7/12/2021
- Public Services Committee 7/20/2021
- Final consideration 7/26/2021

Planning Commission Recommendation:

The Planning Commission heard this item at their July 6, 2021 meeting and recommended the Governing Body approve this application by a vote of 3-0.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Resolution
2. Planning Commission Staff Report

Approved as to
form only:
WFO
Date: 7/6/21

RESOLUTION NO. _____

ENTITLED: **“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR WATERFORD SQUARE 3RD FILING, A REPLAT OF LOTS 28 & 29, BLOCK 7, LOTS 1 & 31, BLOCK 5 AND A PORTION OF TRAY MORE BOULEVARD AND ADJACENT ALLEYS, WATERFORD SQUARE, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED SOUTH OF THE INTERSECTION OF TRAY MORE BOULEVARD AND WATERFORD BOULEVARD).”**

WHEREAS, Richard Lynn Woods has subdivided said land in accordance with the statutes in such cases made and provided; and

WHEREAS, Richard Lynn Woods, the owner of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, block, easements, and right-of-way; and

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the governing body; and the plat has been duly executed by the Development Office; and

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Waterford Square, 3rd Filing, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF

_____, 2021.

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK



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CITY OF CHEYENNE PLANNING COMMISSION

July 6, 2021

STAFF REPORT

FILE: UDC-21-00209: Waterford Square, 3rd Filing Preliminary Plat
(Expedited Request)

REQUEST: A preliminary and final plat proposing re-aligning right-of-way

LOCATION: East of Morrie Avenue, south of I-80

REPRESENTATIVE: Scott D. Larson, P.E.

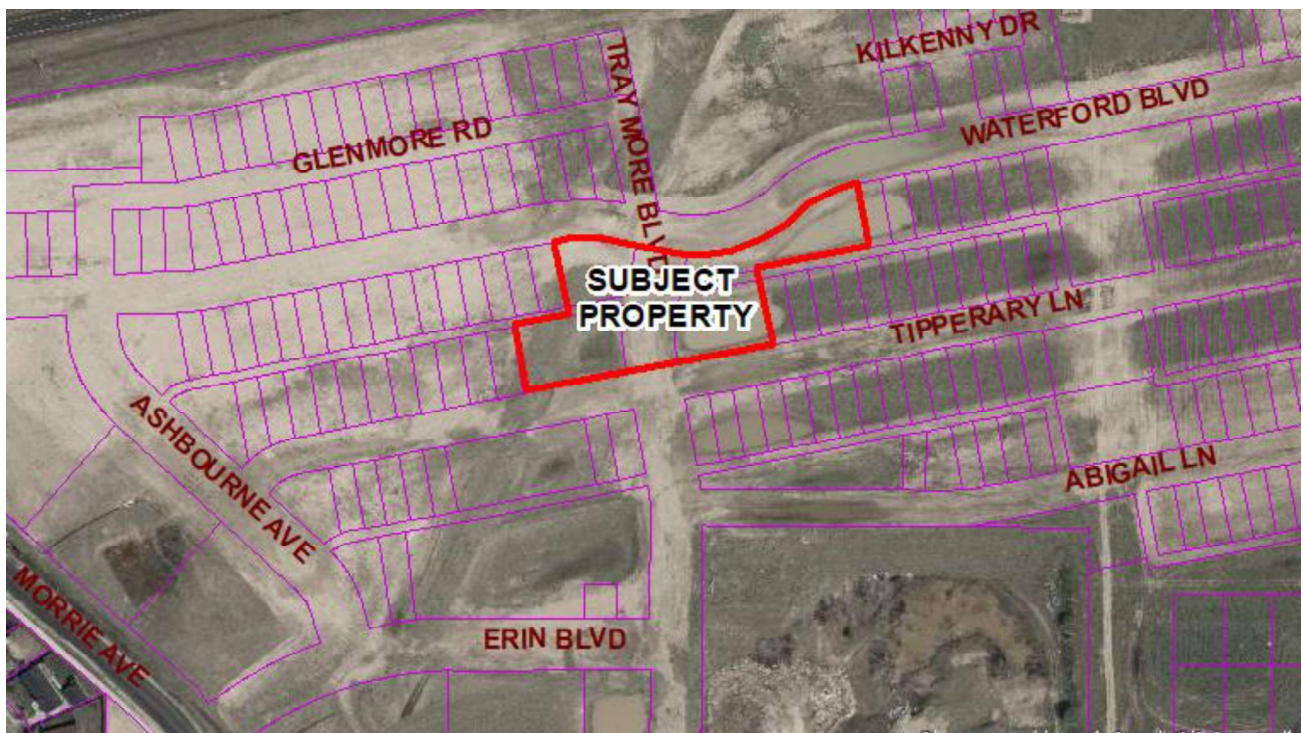
OWNER: Richard Lynn Woods

CURRENT ZONING: NR-3 Neighborhood Residential – High Density

PROPOSED ZONING: NR-3 Neighborhood Residential – High Density

PURPOSE: Re-aligning the right-of-way at the intersection of Waterford Boulevard and Tray More Boulevard

PREPARED BY: Seth Lloyd, Planner II – Development



RECOMMENDED MOTION:

Move to **approve** the Waterford Square, 3rd Filing Expedited Preliminary Plat, advancing the Final Plat to the Governing Body.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC 2.1.3 Final Plat Approval
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

The applicant is requesting approval of an expedited preliminary plat for 1.7 acres of land to better align the Tray More and Waterford Boulevard intersection. The four parcels adjacent to this right-of-way were unbuildable parcels in the original Waterford Square plat and they continue to be so with this plat. All agreements, ownership, and restrictions associated with Lots 28 and 29, Block 7, and Lots 1 and 31, Block 5 Waterford Square will be continued to all lots associated with this plat. The intersection adjustment was stipulated as part of the approval process for Waterford Square, 2nd Filing. The proposed realignment will allow the intersection to better meet intersection standards.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Commercial, Mixed-use Residential	NR-3	Undeveloped
North	Mixed-use Commercial	NR-3	Undeveloped
South	Mixed-use Commercial, Mixed-use Residential	NR-3	Undeveloped
East	Mixed-use Residential	NR-3	Undeveloped
West	Mixed-use Commercial	NR-3	Undeveloped

The property is currently zoned NR-3 Neighborhood Residential – High Density. The NR-3 zone is intended for primarily for high-density, urban residential uses, located close to existing or planned commercial centers. This zone should be supported by a highly connected street network with street design types that have a high degree of pedestrian amenities.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Expedited Plat, the Commission must make the following findings required in UDC 2.1.2.d and UDC 2.1.3.d a detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)

PlanCheyenne supports an effective transportation system with appropriate access alignments and separations. This plat proposes adjusting the Tray More and Waterford intersection to improve the transportation network and properly align the streets.

The future land use map designates this area of the City with the future land use category of Mixed-use Commercial and Mixed-use Residential. All lots created by this plat are unbuildable and are to be used as open space. The provision of open space is an important part of new developments.

The application **complies** with this review criterion.

2) The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)

The realignment of the Tray More and Waterford intersection improves traffic flow and good intersection design is an important planning principle.

The application **complies** with this review criterion.

3) The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)

Transportation Network:

The transportation network in this area of the City is well established and no additions to the street network are proposed. This plat proposes adjusting the Tray More Boulevard right-of-way such that the intersection of Tray More and Waterford is better aligned.

Community Facility Fees:

The land being replatted as part of this platting action was originally platted as part of Waterford Square. The fees and Development Agreement established with Waterford Square apply to this plat, including the fee payment schedule. No other fees are required for this plat.

Open Space:

This area was reserved for open space and right-of-way by the original Waterford Square plat, and the proposed plat continues to utilize the entirety of land within the plat boundary for either open space or right-of-way.

Required Improvements:

This division of land would allow future development to meet all required improvement standards. The plat provides or maintains sufficient easements for the current utilities.

The application **complies** with this review criterion.

- 4) **Any phasing proposed in the application is clearly indicated and demonstrates a logical and well planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

Phasing is proposed – the central and western portions of this plat are proposed to be developed first, in concert with development west of Trey More, and the eastern portion is proposed to be developed later, concurrent with development east of Trey More. The western portion of the surrounding neighborhood is closer to existing City infrastructure, so it is logical that the western portion of this plat be the first portion developed. Should the eastern portion be developed differently, the first-phase development of the western portion would still be logical.

The application **complies** with this review criterion.

- 5) **The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

The applicant submitted Drainage and Traffic Worksheets. Engineering found no major issues with the project as presented. The project is part of the larger Waterford Square development which submitted studies previously.

The application **complies** with this review criterion with conditions.

- 6) **Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

None of the lots proposed by this plat are buildable; however, these lots were originally platted as unbuildable lots in the original Waterford Square Plat.

The application **complies** with this review criterion.

- 7) **All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)**

None of the proposed lots would be owned by the City. The MOU (City Contract 6406) establishes that an HOA will maintain these lots.

The application **complies** with this review criterion.

- 8) The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)**

The realignment of this intersection would not create any undue influence upon potential development on neighboring properties.

The application **complies** with this review criterion.

- 9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)**

The proposed plat would not adversely affect the public health, safety, or general welfare.

The application **complies** with this review criterion.

- 10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)**

Remainder lots are not proposed with this plat.

The application **complies** with this review criterion.

- 11) The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)**

The Final Plat submitted with the application is substantially similar to the Preliminary Plat submitted.

The application **complies** with this review criterion.

- 12) The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)**

Staff has no recommended conditions to the plat.

The application **complies** with this review criterion.

- 13) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)**

As a concurrent Preliminary and Final Plat application, this Final Plat review criterion is covered by the equivalent Preliminary Plat review criterion (subsection 3 above).

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Payment of original fees associated with Waterford Square.
2. Update to the Transportation Network Plan.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the expedited plat application as submitted by the applicant.

This plat is proposed to re-align an intersection after the approval and recording of Waterford Square, 2nd Filing. The plat is consistent with the surrounding previously platted portions of Waterford Square.

ALTERNATIVES:

1. Recommend approval of the expedited preliminary plat, forwarding the Final Plat to the Governing Body (**Staff Recommendation**).
2. Recommend approval of the preliminary plat with conditions and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body.
3. Recommend approval of the preliminary plat as submitted by the applicant and forward the preliminary plat to the Governing Body.
4. Recommend approval of the preliminary plat subject to staff's recommended conditions and forward the preliminary plat to the Governing Body.
5. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
6. Postpone the project until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

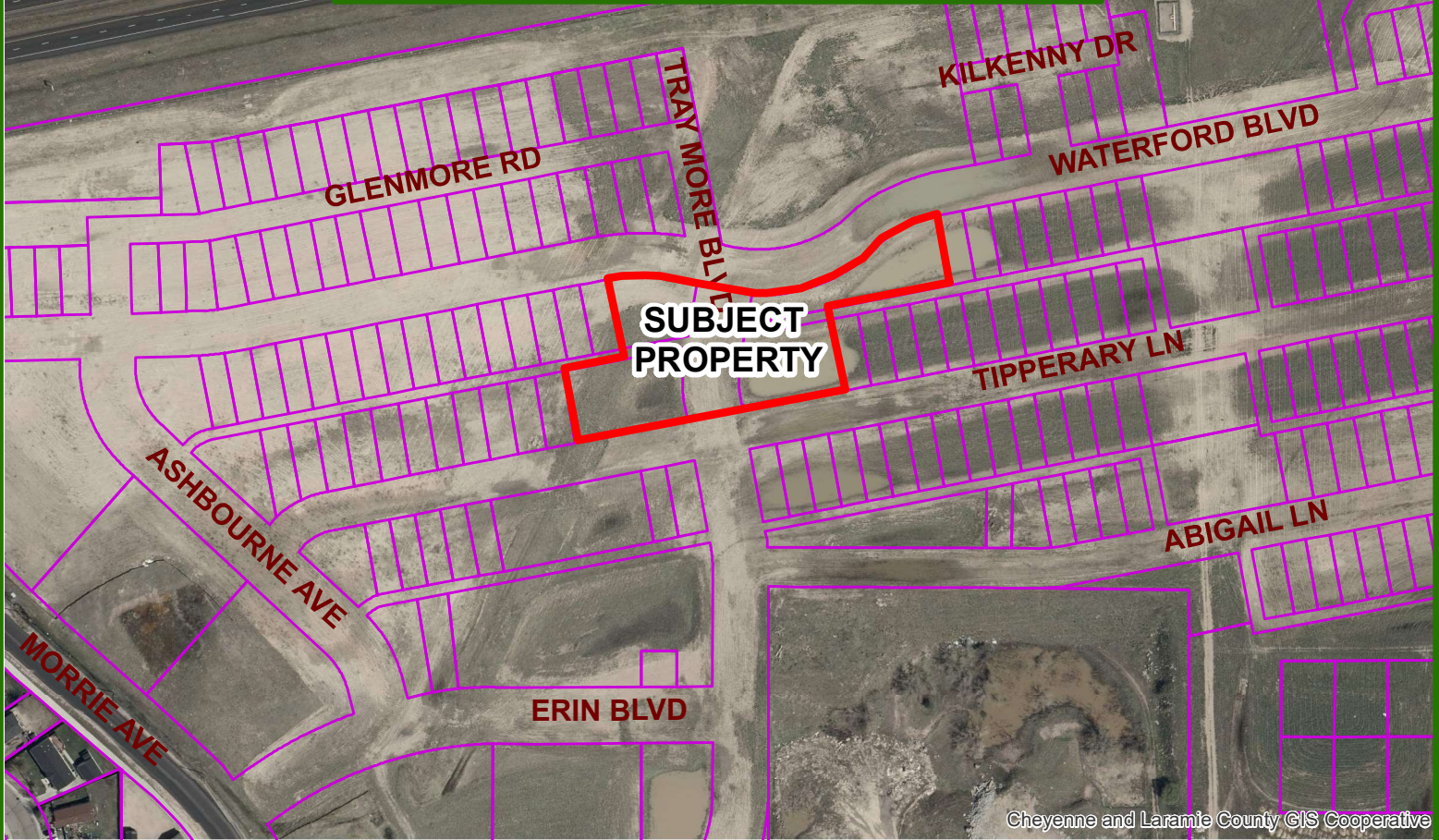
STAFF RECOMMENDATION:

Staff recommends approval of the expedited Preliminary Plat and advancing the Final Plat to the Governing Body.

ATTACHMENTS:

1. Aerial, Zoning, and Future Land Use Map
2. Submitted Master Application Form
3. Applicant-submitted Preliminary Plat
4. Applicant-submitted Final Plat

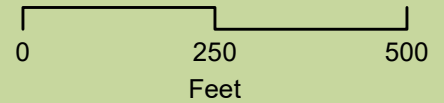
Waterford Square, 3rd Filing Expedited Plat



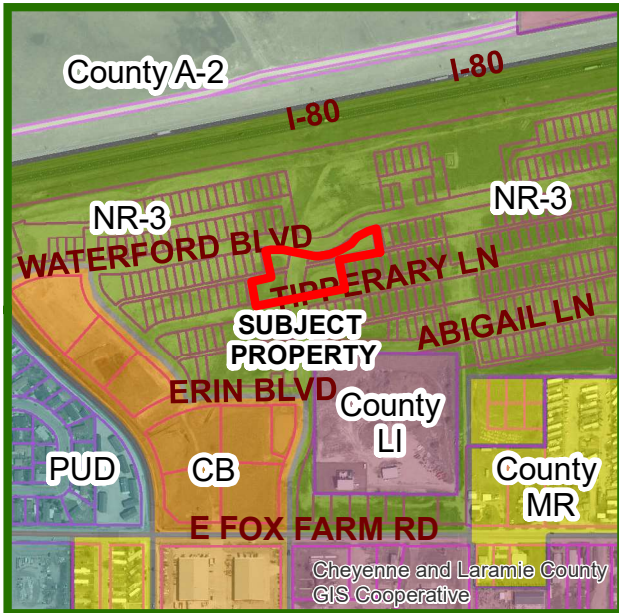
Application Number
Expedited Plat
UDC-21-00209

Applicant: Richard Lynn Woods
Agent: Scott D. Larson, P.E.
BenchMark Engineers, PC

Scale applies to
above map only

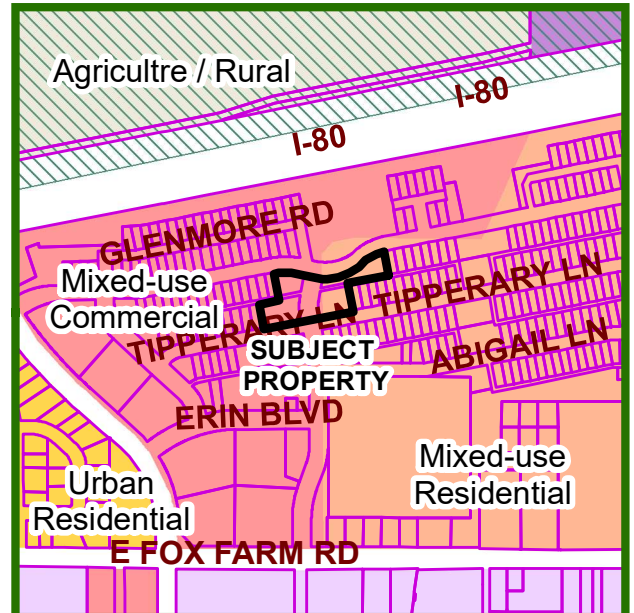


Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Planning and Development: Plat - Expedited

Submission date: **19 May 2021, 1:46PM**
Receipt number: **9**
Related form version: **6**

General Information

Applicant Name:	James O. Woods IV
Applicant Address:	P.O. Box 3020
Applicant City:	Cheyenne
Applicant State:	Wyoming
Applicant Zip Code:	82003
Applicant Phone:	307-630-7884
Applicant Email	woodsbrothersconstruction@live.com
Representative Name:	Scott D. Larson, P.E.
Representative Address:	1920 Thomes Ave, Suite 200
Representative City:	Cheyenne
Representative State:	Wyoming
Representative Zip Code:	82001
Representative Phone:	307-634-9064
Representative Email:	scottL@benchmarkengineers.com
Owner Name:	Richard Lynn Woods
Owner Address:	P.O. Box 3020
Owner City:	Cheyenne

Owner State:	Wyoming
Owner Zip Code:	82003
Owner Phone:	307-630-7884
Owner Email:	woodsbrothersconstruction@live.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	SignedLetterofAuthorization.pdf
Project Location (Street Address or General Location):	Lots 28 & 29, Block 7, Lots 1 & 31, Block 5 and a portion of Tray More Boulevard and adjacent alleys, Waterford Square
Assessor's Parcel ID number(s)	
Total Project Area	Enter total acreage/square feet 79 acres
Existing Zoning	NR-3 - Neighborhood Residential - High Density

Application-Specific Information

Eligibility Determination	I acknowledge that staff has determined this is eligible to be submitted as an expedited plat.
Written Statement	The purpose of this replat is to realign the intersection such that it lines up more appropriately and to slightly modify some lots.
Current Subdivision	Waterford Square
Lots affected by this proposal	Note any lots or block affected, if any
A pre-application meeting is not required, but recommended. Please indicate the date the pre-application meeting was held.	04/02/2021
Upload any pre-application meeting notes or summaries relevant to this proposal.	
Are any easements proposed to be added, modified, or removed? No	

If easements are proposed to be added, modified, or removed. Attach Franchise Utility approval letters from all affected utilities. Failure to provide this information could result in delay of application review.

Open Space Approach

The open space that was established with the original Waterford Square plat and the 1st Filing will not be changed as a result of this replat.

Drainage Worksheet / Study

[drainageworksheet.pdf](#)

Transportation Worksheet / Study

[SKM_C3350210519090200.pdf](#)

Transportation Network Plan

[Waterford Square 3rd Filing Transportation Network Plan May 2021.pdf](#)

Preliminary Plat Drawing

[1448 PRELIM PLAT 3rd FILING 2017 \[2019 version\]-PRELIMINARY PLAT.pdf](#)

Final Plat Drawing

[16229 3RD FILING FINAL 2021 4-26-21.pdf](#)

Signature / Certification

Applicant Signature

Name of signatory: Scott D. Larson, P.E.



[Link to signature](#)

Please enter an email address for an email receipt.

scottL@benchmarkengineers.com

